

- **1. Introduction and Overview**

- **Origins:** The conflict began with the partition of the Indian Sub-continent in 1947 when the Maharaja of Kashmir acceded to India.
- **Conflict History:** Pakistan and India have fought four wars and engaged in near-daily clashes, leading to the nuclearization of the region.
- **Current Crisis:**
 - On August 5, 2019, India unilaterally repealed Article 370, stripping Kashmir of its 'Special Status' and the right to frame its own laws.
 - Article 35A was also removed, allowing non-residents to buy property, which threatens to change the region's demographics.
- **Human Rights:** The political stalemate has led to strong resistance from Kashmiri youth, resulting in excessive militarization and gross human rights violations by India.

- **2. Historical Context (Pre-Partition)**

- **Religious History:** Kashmir was home to Hinduism and Buddhism before Islam became the major religion in the 14th century.
- **Mughal Era:** Considered a "Golden Age" of religious inclusivity and progress under rulers like Akbar.
- **Oppressive Rule:**
 - **Afghan Rule:** Followed the Mughals; oppressive and fearful for Kashmiris.
 - **Sikh Rule (1819-1846):** Marked by oppression and miserable conditions for the population.
 - **Treaty of Amritsar (1846):** The British sold the Vale of Kashmir to a Hindu Dogra, Maharaja Gulab Singh, for a sum of money.
 - **Dogra Rule:** Muslims (the majority) were subjected to heavy taxes, slave labor, and violence.
- **Early Resistance:**
 - **1931:** Widespread demonstrations occurred; 22 protesters were shot dead.
 - **1932:** Sheikh Abdullah formed the "National Conference" party.

- **1946:** Abdullah launched the "Quit Kashmir" movement against the Dogra rule.
- **3. Partition and Accession (1947)**
- **Demographics:** At partition, Kashmir was 77.11% Muslim.
- **Accession Crisis:**
- **Princely States:** Rulers were pressured to join either India or Pakistan.
- **Double Standards:** India annexed Junagadh and Hyderabad by force despite their rulers' wishes, but accepted the Kashmir Maharaja's accession despite the Muslim majority's wish to join Pakistan.
- **Gurdaspur:** Manipulatively allocated to India to provide a land route to Kashmir, also impacting the Indus river flow to Pakistan.
- **Violence:** The Maharaja's forces and Sikhs killed between 200,000 to 500,000 Muslims to suppress uprisings.
- **Tribal Intervention:** Tribesmen from Pakistan entered Kashmir on October 22, 1947, to help their brethren.
- **Instrument of Accession:** On October 26, 1947, the Maharaja signed the accession to India in exchange for military help.
- **First War & UN:**
- War erupted in 1948; India took the issue to the UN Security Council.
- A ceasefire was declared on January 1, 1949.
- **UN Resolution:** Called for a ceasefire, troop withdrawal, and a free plebiscite to determine the state's future.
- **4. Post-Partition Political Maneuvering**
- **Nehru's Promise:** Prime Minister Nehru publicly pledged a plebiscite under UN auspices once peace was restored.
- **Betrayal:** Despite pledges, no plebiscite was held; India occupied the territory.
- **Sheikh Abdullah:**
- Initially rigged elections in 1951 to support accession to India.
- Later sought independence, leading to his dismissal and imprisonment.

- **Article 370 (1954):** Ratified Kashmir's autonomous status, limiting India's legislative power to defense, foreign affairs, and communications.
- **1987 Elections:** Mass rigging of the 1987 elections was a turning point, triggering the separatist insurgency.
- **5. Insurgency (Intifada) and Militarization**
- **Uprising:**
- **JKLF:** Formed in 1988; mass protests began in 1989 demanding "Azadi" (Independence).
- **Youth Resistance:** A fresh wave of resistance began, met with severe repression.
- **Militarization:**
- India deployed **700,000 troops** for a population of 12.6 million.
- **Draconian Laws:** Laws like **PSA** (Public Safety Act) and **AFSPA** (Armed Forces Special Powers Act) grant security forces legal immunity to kill, arrest, and search without warrants.
- **Tactics of Suppression:**
- Use of pellet guns (blinding people), tear gas, and live ammunition.
- Torture, extra-judicial killings, fake encounters, and mass graves.
- **Burhan Wani:** His killing in 2016 triggered massive uprisings and renewed violence.
- **6. Human Rights Violations Against Women**
- **Weapon of War:** Rape and sexual violence are used as "cultural weapons of war" to humiliate and demoralize the entire community.
- **Statistics:** Human Rights Watch reported 882 gang rapes in 1992 alone.
- **Half-Widows:** Many women are "half-widows," unaware if their missing husbands are dead or alive.
- **PTSD:** A large number of victims suffer from Post-Traumatic Stress Disorder.
- **Activism:** Women have moved from passive victims to active protesters, organizing under banners like "Dukhtaran-e-Millat".
- **7. Current Status (Post-August 2019)**

- **Annexation:** The Indian government bifurcated the state into two Union Territories (Jammu & Kashmir and Ladakh).
- **Lockdown:** The region was placed under a prolonged curfew with a total communications blackout (no media/internet).
- **International Reaction:** China raised the issue at the UNSC for the first time in 50 years, condemning the unilateral decision.
- **8. Conclusion**
- **Stalemate:** The conflict remains unresolved despite wars and diplomacy.
- **Indian Stance:** India refuses third-party intervention, insisting on bilateral talks, while blaming Pakistan for terrorism.
- **Solution:** There is a critical need for UN intervention to stop human rights abuses and hold a fair, impartial plebiscite.